

Form No.HCJD/C-121

ORDER SHEET

IN THE LAHORE HIGH COURT, LAHORE.

JUDICIAL DEPARTMENT

D. No. 111493 of 2025.

Ghulam Abbas
vs.
Ghulam Haider

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
	12.09.2025	Mr. Zafar Iqbal Chohan, Advocate.

Objection Case

The petitioner has filed this Civil Revision to challenge the order dated 01.07.2025 passed by learned Additional District Judge, Sargodha, whereby he had allowed the appeal filed by respondent with the result that order dated 24.05.2025 passed by the trial court, declining the application for setting-aside ex-parte proceedings initiated against the respondent vide order dated 25.11.2022 in a suit for specific performance of contract, was set-aside.

2. On this Civil Revision, separate office objections at Serial Nos. 3, 14 and 26 have been raised by office.

3. Learned counsel for the petitioner primarily contests the office objection at Serial No.14 which is that how this revision is competent in view of Punjab Amendment in Section 115(5) of CPC and the remaining two objections relating to insufficiency of court fee and incomplete case having been filed are dependent upon the decision of objection at Serial No.14 mentioned above.

4. When confronted learned counsel for the petitioner states that against order of dismissal of application for setting-aside ex-parte proceedings passed by the trial court, remedy of revision only was maintainable, however, without any legal justification, appeal was

entertained and same was decided, therefore, the objection at Serial No.14 is not sustainable.

5. For clarity, Sub-Section 5 of Section 115 CPC is reproduced below:

“S. 115 Revision:

.....

(5) No proceedings in revision shall be entertained by the High Court against an order passed by the District Court under Section 104.”

6. The said subsection provides that against any order passed in appeal under Section 104 CPC, revision petition is not maintainable. Although the appeal filed by the respondent does not mention under which Section the same had been filed, admittedly it was not an appeal against decree under Section 96 of the CPC and at the most could be treated as an appeal under Section 104 CPC. Whether appeal before the Additional District Judge was competently filed or not, the same has been decided as an appeal against order and not by converting the same into a revision. In view thereof, in terms of subsection 5 of Section 115, remedy of revision was not available against the said order.

7. The grievance raised by the petitioner is that as the appeal was incompetently filed and instead a revision should have been filed before the revisional/appellate court, therefore, *prejudice* has been caused to the rights of the petitioner, hence, this revision petition is maintainable. The said argument is also not sustainable for the reason that if revision had been filed before the Additional District Judge or the appeal had been converted into a revision, then further revision before this Court would not have been maintainable in view of Sub-Sections 3 & 4 of Section 115 CPC which bar second revision in the proceedings and are reproduced below:

“S. 115(3) *If any application under subsection (1) in respect of a case within the competence of the District Court has been made either to the*

High Court or the District Court, no further such application shall be made to either of them.”

(4) No proceedings in revision shall be entertained by the High Court against an order made under subsection (2) by the District Court.”

8. In view thereof, whether the Additional District Judge decided the appeal or revision against the order further revision was not maintainable before this Court, hence, the office objection is **sustained**. The petitioner may, if advised, seek appropriate remedy.

(MUZAMIL AKHTAR SHABIR)
JUDGE

Naveed *

Approved for reporting: